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STATE OF MINNESOTA

COUNTY OF HENNEPIN

DISTRICT COURT

FOURTH JUDICIAL DISTRICT
Case Type: Contract

Yibiao Lu and Jie Hu,

Plaintiffs,

vs.

Fire Insurance Exchange, by and through its attorney-in-fact, Fire Underwriters Association (d/b/a Farmers Insurance),

Defendant.

Court File No.: 27-CV-26-11606

Judge: Jamie Anderson

DEFENDANT'S AMENDED NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS PER MINN. R. CIV. P. 12.03, OR IN THE ALTERNATIVE, FOR SUMMARY JUDGMENT

PLEASE TAKE NOTICE that Defendant Fire Insurance Exchange will bring a motion for judgment on the pleadings, or, in the alternative, for summary judgment, before the Honorable Jamie Anderson, Judge of District Court, on January 6, 2027, at 11:00 a.m. at the Hennepin County Government Center located at 300 South 6th Street, Minneapolis, MN 55487. The courtroom number will be provided the week before the hearing.

MOTION FOR JUDGMENT ON THE PLEADINGS, OR IN THE ALTERNATIVE, FOR SUMMAY JUDGMENT

Pursuant to Minn. R. Civ. P. 12.03, or in the alternative Minn. R. Civ. P. 56, Defendant moves the Court for:

1. An Order for judgment on the pleadings pursuant to Minn. R. Civ. P. 12.03, or, in the alternative, for summary judgment under Minn. R. Civ. P. 56, as detailed in its Memorandum of Law, which will be submitted in accordance with the Rules of Civil Procedure;

2. To stay further discovery pending the Court's determination of the Rule 12.03 motion; and

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3. For such additional relief as the Court shall deem just and proper.

KENNEDY LAW FIRM P.C.

Dated: October 23, 2026

By: *Mary J. Baskfield*
Kevin J. Kennedy (#193872)
Mary J. Baskfield (#314572)
7616 Currell Blvd., Ste. 270
Woodbury, MN 55125
Telephone: 651-256-5000
Em: kkennedy@kennedylf.com
Em: mbaskfield@kennedylf.com
Counsel for Defendant